

curtesy as well as dower was made to follow the general principle.

**As regards the *cestui que trust*.**— With respect to the *cestui que trust*, or the person entitled to the *subpena*, the narrow doctrine contained under the technical expression of privity began equally to be waived, or rather to be applied with considerable latitude of construction. “The equitable interest,” said Justice Rolle, “is not a *thing in action*, but an *inheritance* or *chattel*, as the case may fall out” (*b*); and when once the trust, instead of passing as a *chose in action*, came to be treated on the footing of an actual *estate*, it soon drew to it all the rights and incidents that accompanied property at law: thus, the equity of the *cestui que trust*, though a bare contingency or possibility (*c*), was admitted to be *assignable* (*d*); and Witham’s case, that a husband who survived his wife could not, for want of privity, claim her equitable chattel, was declared by the Court to be no longer an authority (*e*). So a *judgment creditor*, it was held by Lord Nottingham, might prosecute an equitable *feri facias* (*f*); and though Lord Keeper Bridgman refused to allow an equitable *elegit* (*g*), it is probable, had the question arisen before Lord Nottingham, his Lordship would in this, as in other cases, have acted on a more liberal principle: at all events, the creditor’s right to relief in this respect has since been established by the current of modern authority (*h*). Again, a trust was decided by Lord Nottingham to be *assets* in the hands of the heir (*i*); and though Lord Guilford [\*11] afterwards held the other way (*j*), yet Lord \*Nottingham’s view of the subject appears to have been eventually established (*a*). *Curtsey* was also permitted of a trust estate, though the widow of a *cestui que trust* could

(*b*) King v. Holland, Styl. 21; see Casburne v. Casburne, 2 J. & W. 196.

(*c*) Warmstrey v. Tanfield, 1 Ch. Re. 29; Lord Cornbury v. Middleton, 1 Ch. Ca. 208; Goring v. Bickerstaff, 1 Ch. Ca. 8.

(*d*) Courthorpe v. Heyman, Cart. 25, per Lord Bridgman.

(*e*) King v. Holland, Al. 15.

(*f*) Anon. case, cited Balsh v. Wastall, 1 P. W. 445; Pit v. Hunt, 2 Ch. Ca. 73.

(*g*) Pratt v. Colt, Freem. 139.

(*h*) See *infra*.

(*i*) Grey v. Colville, 2 Ch. Re. 143.

(*j*) Creed v. Colville, 1 Vern. 172.

(*a*) See *infra*.